

of the emails in her Special Interrogatory requests and the protective order that is already in place between the parties should also alleviate these concerns.

Plaintiff's Motion to Compel is GRANTED. Defendant is ordered to provide objection-free, verified code-compliant responses to Special Interrogatories 34-47 by May 1, 2026.

Generally, monetary sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or that they would be unjust. (E.g., *Foothill Properties v. Lyon/Copley Corona Assocs., L.P.* (1996) 46 Cal.App.4th 1542, 1557-1558.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1435.)

“The trial court has broad discretion in deciding whether to impose sanctions and in setting the amount of monetary sanctions.” (*Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 789.)

Here, the court finds that Defendant's objections to Plaintiff's special interrogatories 34-47 were without merit and code-compliant responses are required. The Court does not find circumstances to excuse ordering sanctions, but the court does find that the sanctions requested in the amount of \$3,000 is unreasonable.

Defendant is ORDERED to pay Plaintiff sanctions in the amount of \$700 by May 1, 2026.

2. 9:00 AM CASE NUMBER: MSC21-01498
CASE NAME: BARRY HOSIER VS. CAMINO RAMON TERRACE OWNER'S ASSOCIATION
*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH DEPOSITION
FILED BY: CAMINO RAMON TERRACE OWNER'S ASSOCIATION
TENTATIVE RULING:

Camino Ramon Terrace Owner's Association's Motion to Compel is GRANTED. The deposition of M3 Construction General Contractor, Inc.'s Person Most Knowledgeable is to take place on or before April 24, 2026. The Association's request for sanctions is GRANTED, however, the amount requested is unreasonable and is reduced to \$860. 2 hours of work at \$400 per hour, plus \$60 filing fee. M3 is to pay sanctions in the amount of \$860 by April 24, 2026.

California Code of Civil Procedure (C.C.P.) section 205.220 does not state that a party seeking to depose an individual cannot do so “unilaterally.” In fact, the statute expressly requires that a date be set and noticed. (*Id.* subd. (a)(2).) While this court observes that it

would be reasonable and more efficient for one side to reach out to the other in advance to work out dates, the statute does not require such and M3 Construction General Contractor, Inc.'s objection to the noticed depositions as being "unilaterally set" is without merit. (See Code Civ. Proc., §§ 2025.210-2025.295.) The court also observes that counsel for the Camino Ramon Terrace Owner's Association ("the Association") sent an email to M3's counsel on August 27, 2025 and September 15, 2025 (as to the first notice) and again on September 19, 2025 with a formal letter on September 29, 2025 (as to the second notice) in an effort to obtain dates for the depositions which were met without success.

It appears by M3's own admission they did not provide dates for the deposition of their person most knowledgeable until March 12, 2026, seven months after the Association's first request for dates, four months after the November 17, 2025, filing of the Association's motion to compel and just 14 days before the hearing on the motion. The Association has been seeking dates for this deposition since August 2025. This court reviewed M3's explanation for the delay and while this court is quite sympathetic to the stress and distrust that one may feel when faced with the unfamiliarity of our court processes, this is a sentiment often shared by individuals that appear in litigation as a party or even witnesses. While an explanation for the circumstances, it is not an excuse. Mr. Musser's hesitation and concerns are understandable, but it is not an excuse for counsel to fail to be able to obtain a single date between August 2025 and March 2026 for Mr. Musser to appear. The court would further observe that the emails that were provided to the court by M3 in support of their Opposition suggest an offer by Mr. Musser to provide more accommodating weekday dates for his deposition should the Association dismiss this motion and request for sanctions. This appears to demonstrate some knowledge or understanding on the part of Mr. Musser as to what was at stake related to this motion.

Of note, this court does not find that either party's efforts to meet and confer were meaningful and focused on working out their differences.

"The Discovery Act requires that, prior to the initiation of a motion to compel, the moving party declare that he or she has made a serious attempt to obtain 'an informal resolution of each issue.' [Citations.] This rule is designed 'to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order. ...' [Citation.] This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes. [Citations.]" (*Townsend v. Superior Court* (1998) 61 Cal. App. 4th 1431, 1435.) "[W]e find that the statute requires that there be a serious effort at negotiation and informal resolution. We leave it to the parties to determine the proper time, manner, and place for such discussion." (*Townsend, supra*, p. 1438.)

While counsel for the Association made efforts to communicate and obtain dates through email, some of which were responded to by M3's counsel, and a formal letter, at no time did either parties' counsel attempt to call one another or meet in person to work things out. (See California Rules of Court Rule 3.724, Contra Costa County Local Rule 2.121, subd. (e).) Meet

and confer efforts require more than futile emails and a one-sided formal letter. (See C.C.P., §§ 2016.040; 2019.030, subd. (b), 2030.090, subd. (a), 2031.060, subd (a).)

Nonetheless, the Court finds that M3 failed to provide dates for deposition of their person most knowledgeable prior to March 12, 2026; many of the dates provided were weekend dates; and all dates appear to not be available for the Association. Given the seven-month delay and limited weekday dates provided, the court does not find the motion to compel now moot, rather, **the motion to compel is GRANTED. The deposition of M3 Construction General Contractor, Inc.’s Person Most Knowledgeable is to take place on or before April 24, 2026.**

“If, after service of a deposition notice...without having served a valid objection...[the person] fails to appear for examination...the party giving the notice may move for an order compelling ...attendance and testimony...If a motion under subdivision (a) is granted, the court shall impose a monetary sanction...in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (C.C.P. §2025.450, subd. (a)&(g).) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc., supra*, p. 75, citing *Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*U.S. Swimming, Inc., supra*, p. 1435.)

“The trial court has broad discretion in deciding whether to impose sanctions and in setting the amount of monetary sanctions.” (*Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 789.)

As previously stated, M3’s objection to the deposition was not valid and the court does not find that M3’s conduct was with substantial justification. Sanctions are appropriate for the seven-month delay in providing dates for the deposition and failing to produce Mr. Musser at the two dates noticed. (See C.C.P. §2025.450 (g)(2).) **The Association’s request for sanctions is GRANTED, however, the amount requested is unreasonable and is reduced. 2 hours of work at \$400 per hour, plus \$60 filing fee. M3 is to pay sanctions in the amount of \$860 by April 24, 2026.**

3. 9:00 AM CASE NUMBER: MSC21-01498
CASE NAME: BARRY HOSIER VS. CAMINO RAMON TERRACE OWNER'S ASSOCIATION
*HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PROD OF DOCS,
SET 1